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RESOLUTION MSC.537(107) (adopted on 8 June 2023)

FOR HIGH-SPEED CRAFT, 2000 (2000 HSC CODE)

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RESOLUTION MSC.538(107) (adopted on 8 June 2023)

SHIPS OPERATING IN POLAR WATERS (POLAR CODE)

RESOLUTION MSC.538(107)

(adopted on 8 June 2023)

SHIPS OPERATING IN POLAR WATERS (POLAR CODE)

THE MARITIME SAFETY COMMITTEE,

RECALLING Article 28(b) of the Convention on the International Maritime Organization

concerning the functions of the Committee,

NOTING resolution MSC.385(94), by which it adopted the safety -related provisions of the

Introduction, and the whole of parts I-A and I-B of the International Code for Ships Operating

in Polar Waters ("the Polar Code"), which became mandatory under chapter XIV of the

International Convention for the Safety of Life at Sea, 1974 ("the Convention"),

NOTING ALSO article VIII(b) and regulation XIV/1.1.1 of the Convention concerning the

procedure for amending the safety -related provisions of the introduction and part I -A of the

Polar Code,

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procedure for amending the safety -related provisions of the introduction and part I -A of the

Polar Code,

NOTING FURTHER regulation XIV/1.1.2 of the Convention concerning the procedure for

amending part I-B of the Polar Code,

RECOGNIZING the need to introduce safety measures for non-SOLAS ships operating in polar

waters,

HAVING CONSIDERED, at its 107th session,

circulated in accordance with article VIII(b)(i) of the Convention,

1 ADOPTS, in accordance with article VIII(b)(iv) of the Convention,

part I-A of the Polar Code, the text of which is set out in annex 1 to the present resolution;

2 ALSO ADOPTS, in accordance with regulation XIV/1.1.2 of the Convention,

resolution;

3 DETERMINES, in accordance with article VIII(b)(vi)(2)(bb) of the Convention, that the

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resolution;
3 DETERMINES, in accordance with article VIII(b)(vi)(2)(bb) of the Convention, that the
on 1 July 2025, unless, prior to that date, more than one third of the Contracting
Governments
to the Convention or Contracting Governments the combined merchant fleets of which
constitute not less than 50% of the gross tonnage of the world's merchant fleet have
notified
their objections to the amendments;
4 INVITES Contracting Governments to the Convention to note that, in accordance with
article VIII(b)(vii)(2) of the Convention, said amendments shall enter into force
on 1 January 2026 upon their acceptance in accordance with paragraph 3 above;
5 ALSO INVITES Contracting Governments to the Convention to note that the
force of the

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force of the
6 REQUESTS the Secretary -General, for the purposes of article VIII(b)(v) of the
Convention, to transmit certified copies of the present resolution and the text of the
amendments contained in the annexes to all Contracting Governments to the Convention;
RESOLUTION MSC.538(107) (adopted on 8 June 2023)
SHIPS OPERATING IN POLAR WATERS (POLAR CODE)
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7 ALSO REQUESTS the Secretary-General to transmit copies of this resolution and its
annexes to Members of the Organization which are not Contracting Governments to the
Convention.
RESOLUTION MSC.538(107) (adopted on 8 June 2023)
SHIPS OPERATING IN POLAR WATERS (POLAR CODE)
3
ANNEX 1
SHIPS OPERATING IN POLAR WATERS (POLAR CODE)
Part I-A
Safety measures
Chapter 9
Safety of navigation

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